IN THE NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI BENCH (COURT – II)

Mentioning Order
CA (CAA) 47/(ND-II) of 2023

CP (CAA) No. 58 of 2023

IN THE MATTER OF:
Venkatesh Infra Project Pvt. Ltd. and ... Applicant/Petitioner
Venkatesh Steel Infra Pvt. Ltd.

Under Section: 230-232

Order delivered on 04.11.2024

CORAM:
SH. ASHOK KUMAR BHARDWAJ **SH. SUBRATA KUMAR DASH**
HON'BLE MEMBER (J) **HON'BLE MEMBER (T)**

PRESENT:
For the Applicant : Not given
For the RP : Not given

Hearing Through: VC and Physical (Hybrid) Mode

ORDER

CA (CAA) 47/(ND-II) of 2023 & CP (CAA) No. 58 of 2023: The matter is taken up on urgent mentioning.

As pointed out and urged by the Ld. Counsel for the Applicants the clerical errors crept in order dated 24.10.2024 passed in Company Petition CP(CAA)-58/ND/2023 filed in sequel of Company Application No. CA (CAA) 47/(ND-II) of 2023 are directed to be rectified to the effect that expression "**Amalgamation"** used in the order be read as **"Arrangement"** and the **"Transfer Companies and Transferee Company"** be read as **"Demerged Company and Resulting Company".**

Expression in Clause 14 of the first line and second line **"Transferor Companies and Transferee Company"** be read as **"Demerged Company and Resulting Company".**

Expression in **Clause 14(i) be deleted** as none of the companies are proposed to be dissolved as this is Scheme of Arrangement for Demerger of Demerged/Manufacturing undertaking of Demerged Company into Resulting Company."

Clause 14(ii) to Clause 14(Viii) be read as Clause 14(i) to Clause 14(vii).

Expression in Clause 14(ii) to 14(vi) and (viii) **"Transferor Companies"** be read as **"Demerged/Manufacturing undertaking of the Demerged Company."**

Expression in Clause 15 **"with respect to Transferee Company"** be read as **"with respect to the Petitioner Companies".**

Expression in Clause 15 **"the Transferor Companies shall be dissolved" shall be deleted** as none of the Companies are proposed to be dissolved.

Expression in 7th line of Clause 15 "Transferor Companies" be read as **"Demerged/Manufacturing undertaking of the Demerged Company."**

Expression in 8th line of Clause 15 "Transferee Company" be read as "Resulting Company".

Expression in Clause 15 at page no. 13 "consolidated" be read as "rearranged."

Sd/-
(SUBRATA KUMAR DASH)
MEMBER (T)

Sd/-
(ASHOK KUMAR BHARDWAJ)
MEMBER (J)